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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **CAPTAIN G. SERRATO, in his individual and official capacities as Commander, Dublin Area, California Highway Patrol,** Defendant.	Case No. 4:26-cv-05953-ASK Hon. Ajay S. Krishnan **PLAINTIFF'S SUPPLEMENTAL ADMINISTRATIVE MOTION TO CONSIDER WHETHER CASES SHOULD BE RELATED** (Civil L.R. 3-12 and 7-11)

TO THE HONORABLE AJAY S. KRISHNAN, UNITED STATES MAGISTRATE JUDGE:

Pursuant to Civil Local Rules 3-12 and 7-11, Plaintiff Brendan Ngehsi Newanforbi, appearing in propria persona, respectfully submits this Supplemental Administrative Motion to Consider Whether Cases Should Be Related. This Supplemental Motion supplements -- and does not withdraw -- Plaintiff's Administrative Motion to Consider Whether Cases Should Be Related filed August 20, 2026 (the "Original Motion"), in light of two developments since the Original Motion was filed: (1) the operative pleading in the related Meza-Gonzalez action has changed, and (2) Plaintiff has identified a third pending action arising from the same November 1, 2024 encounter that should be included in the relation set.

I.

BACKGROUND

1. On August 20, 2026, Plaintiff filed the Original Motion requesting that the Court determine whether this action, *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK, and *Nforbi v. Meza-Gonzalez et al.*, No. 3:26-cv-08271-PHK, are related under Civil L.R. 3-12(a). A Notice of Filing of the Original Motion was concurrently filed in the Meza-Gonzalez action pursuant to Civil L.R. 3-12(b).

2. Since the Original Motion was filed, Plaintiff has (a) filed a First Amended Complaint in the Meza-Gonzalez action, which is now the operative pleading in that case, and (b) identified a third related action, *Nforbi v. Candelaria et al.*, No. 3:26-cv-08272-LJC, arising from the same November 1, 2024 encounter, which was not before the Court when the Original Motion was filed.

3. Plaintiff submits this Supplemental Motion to update the record accordingly and to request that the Court's relatedness determination under Civil L.R. 3-12(a) extend to all three actions.

II.

CORRECTION TO THE RECORD IN NFORBI v. MEZA-GONZALEZ

4. The Original Motion stated that the complaint in *Nforbi v. Meza-Gonzalez et al.*, No. 3:26-cv-08271-PHK, "was docketed on August 10, 2026 as Dkt. 1 and remains the court pleading of record." That statement is no longer accurate. Plaintiff filed a First Amended Complaint in that action, filed August 17, 2026 and docketed as Dkt. 5, which is now the operative pleading and supersedes Dkt. 1 in its entirety.

5. Plaintiff notes for the Court's benefit that the docket in the Meza-Gonzalez action

currently reflects a second entry containing substantially the same First Amended Complaint text, docketed as Dkt. 6 on August 14, 2026. Plaintiff identifies Dkt. 5 (filed August 17, 2026) as the operative version and will file a separate clarifying notice in that action, or seek correction from the Clerk, to the extent the docket requires disambiguation. This Supplemental Motion relies on Dkt. 5 as the operative pleading.

6. The First Amended Complaint continues to assert six causes of action under 42 U.S.C. section 1983 against Officers Meza-Gonzalez and Melano arising from the same November 1, 2024 encounter described in the Original Motion: judicial deception, fabrication of evidence, unlawful arrest, unlawful warrantless entry, unlawful search, and First Amendment retaliation. The amendment does not alter the relatedness analysis in the Original Motion; the amended pleading confirms the identical factual nucleus.

III.

STATEMENT OF RELATIONSHIP AS TO NFORBI v. CANDELARIA ET AL., NO. 3:26-cv-08272-LJC

A. The Candelaria Action Arises From the Same November 1, 2024 Encounter

7. Plaintiff is also the plaintiff in *Nforbi v. Candelaria et al.*, No. 3:26-cv-08272-LJC, assigned to Magistrate Judge Lisa J. Cisneros. The operative pleading in that action is the First Amended Complaint for Damages and Injunctive Relief, filed August 17, 2026 and docketed as Dkt. 6.

8. The Candelaria action asserts procedural due process claims under 42 U.S.C. section 1983 against Diana Candelaria, a California DMV Driver Safety Hearing Officer, in her individual capacity, and claims for prospective declaratory and injunctive relief under *Ex parte Young*, 209 U.S. 123 (1908), against Steve Gordon, Director of the California DMV, in his

official capacity. Both claims challenge the constitutionality of the administrative-per-se proceeding that suspended Plaintiff's Class A commercial driver's license following the same November 1, 2024 arrest at issue in this action and in the Meza-Gonzalez action.

9. As in this action and the Meza-Gonzalez action, the Candelaria action requires adjudication of overlapping facts concerning the November 1, 2024 encounter, including the CHP dashcam recording, the officers' contemporaneous statements, the accuracy of the DS-367 Officer's Statement and CHP arrest report, and the CHP's subsequent Penal Code section 851.6 Detention Certificate reclassifying the encounter as a detention rather than an arrest. Defendant Candelaria's written decision sustaining Plaintiff's license suspension rests on the same underlying arrest that Captain Serrato relied upon in denying Plaintiff's U-Visa certification request in this action, and that Officers Meza-Gonzalez and Melano are alleged to have unlawfully effected in the related action.

B. Separate Adjudication of Three Overlapping Actions Compounds the Risk of Duplicative Labor and Inconsistent Results

10. The concerns identified in the Original Motion are magnified with a third overlapping action pending. If the three actions proceed before three different judges, each will independently examine overlapping portions of the same evidentiary record -- principally the CHP dashcam recording and the officers' contemporaneous statements and reports -- creating a heightened risk that one court will find the underlying arrest and the officers' representations lawful and accurate while another finds them unlawful and fabricated.

11. Consolidating all three actions before a single judge, who has already reviewed this factual record in connection with the Original Motion and this Court's June 29, 2026 screening order (Dkt. No. 5 in this action), promotes judicial economy and reduces the risk of inconsistent adjudication of a single, disputed set of facts.

IV.

REQUESTED RELIEF

12. Plaintiff respectfully requests that the Court find the following three actions related within the meaning of Civil L.R. 3-12(a):

a. *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK (the instant action);

b. *Nforbi v. Meza-Gonzalez et al.*, No. 3:26-cv-08271-PHK; and

c. *Nforbi v. Candelaria et al.*, No. 3:26-cv-08272-LJC.

13. Plaintiff further requests that, pursuant to Civil L.R. 3-12(f)(3), the Clerk be directed to reassign *Nforbi v. Meza-Gonzalez et al.* and *Nforbi v. Candelaria et al.* to the undersigned Magistrate Judge as the judge assigned to the lowest-numbered related action.

V.

COMPLIANCE WITH CIVIL L.R. 7-11

14. Civil L.R. 7-11(a) requires that an administrative motion be accompanied by a proposed order and either a stipulation under Civil L.R. 7-12 or a declaration explaining why a stipulation could not be obtained. A Supplemental Declaration of Plaintiff is filed concurrently herewith, explaining that no defendant has appeared in any of the three actions, making a stipulation impossible at this time. A Proposed Order is also submitted concurrently.

VI.

CONCLUSION

For the foregoing reasons, Plaintiff respectfully requests that the Court find the three actions identified above related under Civil L.R. 3-12(a) and direct the Clerk to reassign the two higher-numbered actions to this Court pursuant to Civil L.R. 3-12(f)(3).

Pursuant to Civil L.R. 3-12(b), a copy of this Supplemental Motion is being filed in *Nforbi v. Meza-Gonzalez et al.*, No. 3:26-cv-08271-PHK, and in *Nforbi v. Candelaria et al.*, No. 3:26-cv-08272-LJC, using the "Notice (Other)" ECF event.

Dated: August 21, 2026

Respectfully submitted,

BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Pro Per